

Tentative Rulings for Department 503

Begin at the next page

(34)

Tentative Ruling

Re: **Stevens v. Nguyen, et al.**
Superior Court Case No. 25CECG00331

Hearing Date: August 18, 2026 (Dept. 503)

Motion: by Plaintiff for Leave to File a First Amended Complaint

Tentative Ruling:

To grant. Plaintiff shall serve and file his first amended complaint within 10 days of the date of service of this order.

Explanation:

“ ‘Code of Civil Procedure section 473, which gives the courts power to permit amendments in furtherance of justice, has received a very liberal interpretation by the courts of this state.... In spite of this policy of liberality, a court may deny a good amendment in proper form where there is unwarranted delay in presenting it.... On the other hand, where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend.’ [Citation.] ‘In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.’ [Citation.]” (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159.)

“While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530, internal citations omitted.)

California Rules of Court, Rule 3.1324 sets for the technical requirements for a motion to amend. Subdivision (a) requires that the additions and deletions are identified. Subdivision (b) requires a declaration to accompany the motion to amend, and further requires it to specify: “(1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.”

The moving papers in the case at bench are technically sufficient. The proposed first amended complaint designates additions to the original complaint, limited to the

second cause of action, with underline, and the declaration states there are no deletions to the first cause of action. (Cal. Rules of Court, rule 3.1324, subd. (a).) The court notes the first cause of action is omitted from the attachment to counsel's declaration. The declaration accompanying the motion is sufficient. (*Id.* at rule 3.1324, subd. (b).) The effect of the amendment is to add a new cause of action alleging defendants acted to transfer assets to avoid satisfying plaintiff's pending personal injury claims. (Nunes Decl. ¶ 2.) The facts giving rise to the amendment were learned after counsel hired a private investigator to perform a search of defendants' assets in April 2026 and as a result the amendments could not have been made earlier. (*Id.* at ¶¶ 4-5.)

Defendants raise concerns of the merits of the amendment. The court will not engage in analysis of the merits of the proposed amendment on this motion, turning it into a demurrer (or even a summary judgment motion). Such analysis is premature at this juncture. Generally, analysis of legal insufficiency supporting denial of leave to amend is in the nature of a legal bar that cannot possibly be cured by amendment (such as a statute of limitations, or *res judicata*). (See *Yee v. Mobilehome Park Rental Review Bd. (City of Escondido)* (1998) 62 Cal.App.4th 1409, 1429.) No such factor is here.

Defendants additionally argue they are prejudiced by plaintiff's amendment with trial less than 90 days away. The court agrees that the new cause of action is of a wholly different nature than the original negligence claims and will require additional discovery. However, as there have been no previous trial continuances and there remains time to conduct discovery for the current trial date these circumstances do not necessarily show actual prejudice.

The opposition relies on *Hayutin v. Weintraub* (1962) 207 Cal.App.2d 497 in support of finding actual prejudice in the addition of a new cause of action of a completely different nature. The circumstances here are distinguishable from those of *Hayutin*, where leave was sought on the eve of trial and witnesses from out of state were present for trial. (*Id.*, at p. 507.) Additionally, in *Hayutin* a previous trial continuance had been granted on the condition that no application to amendment of the pleadings be made before trial. (*Id.* at p. 504.) It was also questionable whether the moving party's prior counsel could have sought to amend the pleading at an earlier time. (*Id.* at p. 506.)

In light of the great liberality in allowing substantive amendments to the pleadings, the court intends to grant plaintiff's motion for leave to file the First Amended Complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/14/2026.
(Judge's initials) (Date)